

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 25, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
1:30 p.m.		
1	Cigdemoglu v. Feryanitz	Plaintiff Serge Cigdemoglu's motion to deem facts admitted against Defendant Nicole Feryanitz is DENIED without prejudice . At the court's November 13, 2025 initial hearing on the motion, the court noted discrepancies related to service. Specifically, Plaintiff contends that the discovery at issue was served on October 20, 2024. [Declaration of Jamie Jiyeon Kim, ¶ 2]. However, the proof of service for the discovery

		at issue states that service of request for admission, set one, was served by mail on July 21, 2024 at 21231 Dove Circle, Huntington Beach, CA 92646 [the "Huntington Beach Address"]. [Id., Ex. 1 at p. 3]. Further, the address listed on the caption of Defendant Nicole Feryanitz's answer is the Huntington Beach Address. However, the motion, itself, was served on Nicole Feryanitz at 1166 Verrona Place, Pomona, CA 91766 (the "Pomona Address"). There is no notice of change of address by Nicole Feryanitz on file in this case. There is no explanation how and why Plaintiff obtained this Pomona Address. The court continued the hearing for Plaintiff to file an amended declaration explaining the discrepancy in the addresses and to establish that Defendant Feryanitz received the discovery at issue and the moving papers on the motion with sufficient notice. Since that hearing, Plaintiff has only filed a notice of the continued hearing, which Plaintiff served on Defendant Feryanitz at both the Huntington Beach Address and the Pomona Address. There is no further evidence that Defendant Feryanitz received proper notice of all of the moving papers on the motion with sufficient notice. Further, to the extent that Plaintiff has information that Defendant Feryanitz moved to the Pomona Address, the discovery being served at the Huntington Address may likely not have reached Feryanitz. For these reasons, the motion is denied without prejudice. Plaintiff to give notice.
2	Latif v. Jack W. Mitchell Construction, Inc.	Defendants Jack Mitchell Construction, Inc., Jack Mitchell Construction, Jack W. Mitchell and Lorie Mitchell's Motion to Strike Plaintiff Alaa Latif's First Amended Complaint is DENIED. <u>Authority</u> Code Civ. Proc. § 436, provides: "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strikeout any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Defendants move to strike the following from the First Amended Complaint (FAC): 1. Page 10, lines 1-2, paragraph 64, in its entirety, which alleges: "Defendants acted willfully and maliciously, justifying punitive and exemplary damages under Civil Code §3294."; and 2. Page 12, line 12, paragraph 5 of the Prayer, which "seeks punitive and exemplary damages pursuant to Civil Code §3294." Paragraph 64 is under the 4th cause of action for fraudulent concealment in the FAC. According to Civ. Code § 3294 (c)(1), (2) and (3):

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

Plaintiff alleges the following in support of this claim against all Defendants:

At all relevant times, Defendants had a duty to disclose the true status of JMC's contractor's license because (a) they possessed exclusive knowledge of material facts; (b) they made partial representations in Section 1(G) of the Agreement that JMC was duly licensed; and (c) Plaintiff could not have discovered this information on his own. (FAC, ¶ 57). Defendants intentionally concealed that JMC's contractor's license was not active or in good standing during the project. (FAC, ¶ 58). Defendants concealed this information to induce Plaintiff to continue performance and payment under the Agreement. (FAC, ¶ 69). Plaintiff did not know of the concealed facts and could not have discovered them through reasonable diligence. (FAC, ¶ 60). Approximately one month after termination, Plaintiff learned from a subcontractor that JMC's license was not in good standing during the project. (FAC, ¶ 61).

Defendants contend that the FAC does not plead ultimate facts showing oppression, fraud, or malice as required by Civil Code section 3294, and, therefore, punitive damages should be stricken. Defendants also contend that the FAC pleads no nonconclusory facts showing such malice or fraud by either Jack Mitchell or Lorie Mitchell (the only individual Defendants).

"The elements of a cause of action for fraud based on concealment are: '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.'" (*Kaldenbach v. Mut. of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850 [internal citations omitted]).

"There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]'" (*LiMandri v. Judkins* (1997) 52

		Cal.App.4th 326, 335 [citing <i>Heliotis v. Schuman</i> (1986) 181 Cal.App.3d 646, 651].) "Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement." (<i>LiMandri, supra</i>, 52 Cal.App.4th at 337 [emphasis added]). With regards to fraudulent concealment, a complaint need not specify information that is uniquely within defendants' knowledge. (<i>Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif.</i> (2016) 245 Cal.App.4th 821, 840) However, Plaintiff has adequately alleged a duty to disclose as Plaintiff has alleged that <u>all</u> Defendants, including the individual defendants, entered into a contractual agreement with Plaintiff. Plaintiff alleges that Defendants intentionally concealed that JMC's license was not active despite the contractual agreement wherein they represented that JMC was licensed, and that Plaintiff was unaware of this fact. The court finds that Plaintiff adequately stated a cause of action for fraudulent concealment against all Defendants. Accordingly, because Plaintiff has adequately stated fraud under Civil Code § 3294, subd. (c)(3), the motion to strike is DENIED. Defendants shall give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 27, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
3	Ruby v. Farano	Plaintiffs Paula Sanburg Ruby and Barry Ruby's Motion to Compel Further Responses to Requests for Production (Set One) is DENIED. Plaintiffs' Motion is denied for several reasons. First, a motion to compel further responses to requests for production of documents is required to be accompanied by a compliant separate statement. (Cal. Rules of Court, rule 3.1345(a)(2).) Absent from the Motion is a separate statement. "When a motion fails to include a separate statement, a trial court is 'well within its discretion' to deny the motion." (<i>In re Marriage of Moore</i> (2024) 102 Cal.App.5th 1275, 1296, citing to <i>Mills v. U.S. Bank</i> (2008) 166 Cal.App.4th 871, 893; <i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762.) While the first six pages of Exhibit B to the Ruby Declaration includes a summary of why Defendant's responses suffer from "systemic defects," Exhibit B still does not comply with the Rules of Court, such that the Court acts within its discretion to deny the Motion. (<i>In re Marriage of Moore</i> (2024) 102 Cal.App.5th 1275, 1296; see <i>People ex rel. Harris v. Sarpas</i> (2014) 225 Cal.App.4th 1539, 1554 [no abuse of discretion in

denying motion to compel where the motions failed to comply with the applicable rules regarding separate statements].)

While Plaintiffs are permitted to submit a concise outline of the discovery request and each response in dispute (Code Civ. Proc., § 2031.310, subd. (b)(3); Cal. Rules of Court, rule 3.1345(b)(2); see *In Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296-1297 [moving party not required to obtain prior court permission to submit a concise outline in support of motion]), Exhibit B to the Ruby Declaration can hardly be described as complying with either the separate statement requirement, or as a “concise outline of the discovery request and each response in dispute.”

As the moving party, it was Plaintiffs’ duty to provide the Court with a compliant separate statement so that the Court could understand each discovery request, all the responses that are at issue, and the factual and legal reasons that warrant further responses. Plaintiffs’ failure to comply with rule 3.1345 warrants denial of their Motion.

Second, motions to compel further responses require that Plaintiffs make a good faith effort at informal resolution prior to filing the motion. Pursuant to the Code of Civil Procedure, a motion to compel further responses to interrogatories “shall be accompanied by a meet and confer declaration under section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

In turn, section 2016.040 of the Code of Civil Procedure states that a “meet and confer declaration in support of a motion *shall* state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), italics added.)

Plaintiffs only attempted to meet-and-confer with Defendant via written correspondence. (Exhibits C, D to Ruby Declaration.) Even when Defendant advised Plaintiffs that the meet-and-confer requirement required a telephonic or in-person discussion, Plaintiffs insisted Defendant was wrong, and they took the position that their written meet-and-confer correspondence was sufficient. (Exhibit D to Ruby Declaration.)

Further, Plaintiffs’ meet-and-confer efforts do not evince “ ‘a serious effort at negotiation and informal resolution.’ ” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.) “ ‘[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ [Citation.]” (*Id.* at p. 1294.) “ ‘[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ ... [A] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ [Citation.]” (*Ibid.*; *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293-1294; *Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 880.)

This is because Plaintiffs' sole meet-and-confer letter demanded further responses within 10 days, and they made no further effort to discuss why they were entitled to further responses as to their requests for production.

Further, in determining whether Plaintiffs made an adequate effort at informal resolution, the Court may also consider "[t]he time available before the motion filing deadline" to determine "whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit" (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.)

The discovery responses were mail-served on January 5, 2026, meaning Plaintiffs' deadline to file the subject Motion was February 24, 2026, or 45 days after service, plus five additional days to account for mail service.

Rather than make a serious effort at informal resolution, Plaintiffs sent two letters, dated January 13 and 15, which merely demanded further responses within 10 days (Exhibits A and C to Ruby Declaration). They then filed the subject Motion on January 23, 2026, even though they had about a month to engage in a good faith effort at resolving this dispute.

The foregoing shows that, had Plaintiffs complied with their meet-and-confer obligations, there would at least have been a chance for the parties to avoid this Motion.

Third, a motion to compel further responses to requests for production of documents must "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

"To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved of, on other grounds, by *Williams v. Superior Court* (2017) 3 Cal.5th 531 [disapproving prior cases that held a party seeking discovery of private information was always required to establish a compelling interest of compelling need, without regard to the other considerations articulated in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1].)

While Plaintiffs raise a number of arguments as to why Defendant's responses are not code-compliant, or why they are not credible (Ruby Declaration, ¶¶ 7-11, 15-17; Exhibits B, D to Ruby Declaration), they have not explained why the contested requests "will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224.)

		Since Plaintiffs failed to set forth specific facts showing good cause to justify the discovery sought by their requests for production of documents, their Motion is denied. Finally, the Court acknowledges that Plaintiffs are self-represented, such that they do not have the benefit of legal counsel. However, the law is clear that self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. They are not afforded exceptionally lenient treatment, and they are held to the same restrictive rules as an attorney. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Rancho Mirage Country Club Homeowners Association v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262.) For the reasons discussed, <i>supra</i>, Plaintiffs' Motion is denied. Defendant to give notice.
4	Hulsey v. Nguyen	Plaintiff and Cross-Defendant Rickie Hulsey moves to vacate 1) the Court's January 22, 2026 order declaring Plaintiff a vexatious litigant and 2) vacating the default entered on June 1, 2022 and the default judgment entered on February 3, 2023. For the following reasons, the motions are DENIED. In this action, at the trial on May 31, 2022, Plaintiff did not appear and did not file trial documents, so the Court dismissed the Complaint without prejudice. (ROA 258.) At the trial on the Cross-Complaint on June 1, 2022, Cross-Defendant Hulsey did not appear for trial and the Court ordered Cross-Defendant's default entered. (ROA 267.) At the default prove up on February 3, 2023, the Court entered judgment against Plaintiff in the amount of \$27,737.77. (ROA 339.) Plaintiff's "motion to vacate void default judgment" filed on January 29, 2026 seeks set aside the default and the default judgment. Plaintiff contends that the default is void because it was entered after Defendant had appeared in the case, that there was no proof of service establishing Plaintiff/Cross-Defendant was served with the Cross-Complaint, and that Plaintiff's failure to attend trial was excusable neglect. However, Plaintiff, in propria person, has repeatedly relitigated or attempted to relitigate the validity of the judgment entered against her. On June 10, 2022, Plaintiff moved to set aside the default, but that motion was denied on November 18, 2022. (ROA 318.) On February 21, 2023, Plaintiff filed a motion to vacate the default judgment, but the Court denied that motion on July 10, 2023. (ROA 376.) On July 31, 2023, Plaintiff filed another motion to vacate the default judgment, but the Court denied that motion on February 1, 2024. (ROA 431.) Plaintiff filed an appeal of the Court's February 1, 2024 ruling, but the Court of Appeal issued an Order on February 3, 2025 affirming the trial court's February 1, 2024 ruling. (ROA 455.) Plaintiff filed another motion to vacate the default judgment on May 19, 2025, which was denied on July 3, 2025. (ROAs 468, 473.) Plaintiff filed another motion to vacate the default judgment on July 9, 2025, but that motion was denied on October 23, 2025. (ROAs 475, 491.) Plaintiff filed two more motions to vacate the default judgment on October 30, 2025 and January 29, 2026. (ROAs 493, 558.)

Plaintiff has filed at least 7 motions in attempts to relitigate the validity of the February 3, 2023 judgment.

A court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (Civ. Proc. Code § 473(b).) Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Id.)

As stated previously, this motion was filed on January 29, 2026, almost 4 years after Plaintiff's default was entered on June 1, 2022 and almost 3 years after the default judgment was entered on February 3, 2023. (ROAs 267, 339.) Thus, the motion is not timely.

Further, this Court has addressed Plaintiff's contention that she was never served with the Summons re: Cross-Complaint or Cross-Complaint on multiple occasions. (See ROA 16, 142, 238, 318, 376, 431, and 455.) The matter is well settled in this action and Plaintiff's request to set aside the default judgment on this ground is denied. As previously stated, Plaintiff already moved to strike the cross-complaint without objecting to service, therefore, Plaintiff has already appeared in this action and consented to the Court's jurisdiction. (ROA No. 22.) Filing a motion to strike is a general appearance. (Code Civ. Proc., § 1014.)

Plaintiff also moves to vacate the January 22, 2026 order declaring Plaintiff a vexatious litigant. Plaintiff advances three primary arguments in support of that motion.

First, Plaintiff contends that the order is void for lack of personal jurisdiction. This contention relies entirely on the argument that Plaintiff was not properly served with the Cross-Complaint. As discussed previously, this argument lacks merit.

Second, Plaintiff contends that the vexatious litigant motion was not properly noticed under Code Civ. Proc. § 1005(b). The Court already addressed this contention earlier. (ROA 540.) The motion was served by mail on December 22, 2025. Sixteen court days before January 22, 2026 is December 29, 2025. Accounting for the extra 5 days required for mail service, service on December 22, 2025 was sufficient.

Third, Plaintiff contends the notice of motion stated an incorrect case number and an incorrect hearing year. Again, the Court already addressed this contention in the January 22, 2026 ruling. (ROA 540.) These typographical errors were immaterial, as Plaintiff herself knew that the hearing was set for January 22, 2026. (ROA 516, 540.) She filed an opposition and she appeared at the hearing. (Ibid.)

The motions are denied.

		The moving party to give notice.
5	N.B.S. Diamonds Inc. v. Lugano Diamonds & Jewelry Inc.	Plaintiff N.B.S Diamonds, Inc. dba Scarselli Diamonds' motion for leave to file a second amended complaint is CONTINUED to January 28, 2027, at 1:30 p.m. in this department. Leave to amend should be granted liberally to accomplish substantial justice for both parties. (Code Civ. Proc., § 473, subd. (a); <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489 ("<i>Hirsa</i>").) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (<i>Morgan v. Sup. Ct.</i> (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) "The power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) "Allowing the filing of [] an amendment is in furtherance of justice and in keeping with the fundamental policy of our courts that cases should be decided on their merits." (<i>Hirsa, supra</i>, at p.490.) It is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. Here, Plaintiff has substantially complied with the requirements for leave to amend under Rule 3.1324. However, Plaintiff originally filed the motion on January 21, 2026, seeking leave to file the proposed second amended complaint attached as Exhibit 1 to ROA # 83. Since then, however, Plaintiff has obtained relief from the automatic stay against Defendant Lugano Diamonds & Jewelry, Inc. On June 18, 2026, therefore, Plaintiff filed a supplemental declaration for the motion, asking the court to, instead, grant Plaintiff leave to file a revised proposed second amended complaint, which is attached as Exhibit A to ROA #107. The June 18, 2026 declaration, however, fails to give Defendants sufficient notice of the revised relief that Plaintiff seeks. For this reason, to ensure due process, the court continues the hearing to January 28, 2027, at 1:30 p.m. in this department. Plaintiff is ordered to serve Defendants an amended notice of Plaintiff's revised request in a

		manner that ensures that Defendants have sufficient notice under the code pursuant to the new hearing date. Further, for the court's convenience, Plaintiff is also ordered to file a redlined version of the proposed revised second amended complaint that shows the changes from the first amended complaint to the second amended complaint with the amended notice. Opposition and reply papers may be filed pursuant to the code based on the new hearing date. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to January 28, 2027, at 1:30 p.m. in this department. Plaintiff to give notice. <u>Review Hearing re: Bankruptcy</u> The Review Hearing re: Bankruptcy is continued to January 28, 2027, at 1:30 p.m. in this department. Plaintiff to give notice.
6	Fuery v. McCabe	Off calendar.
7	Bischoff v. General Motors, LLC	Defendant General Motors, LLC's motion to strike portions of the complaint by Plaintiffs Doug Bischoff and Paige Bischoff is GRANTED with 20 days leave to amend. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. Code Civ. Proc. § 431.10(b). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (<i>Perkins v. Superior Court</i> (1981) 117 Cal. App. 3d 1, 6). Defendant General Motors moves to strike allegations related to civil penalties on the grounds that Plaintiffs failed to allege facts to establish that Plaintiff complied with Code of Civil Procedure section 871.24. Code of Civil Procedure Section 871.24 requires that "at least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: 1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a

brief summary of the repair history and problems with the motor vehicle.

- 2) Demand that the manufacturer repurchase or replace the motor vehicle."

(Code Civ. Proc., § 871.24, subd. (a)). "At the time that the notice submitted pursuant to subdivision (a) is sent, the consumer shall have possession of the motor vehicle." (Code Civ. Proc., § 871.24, subd. (c)).

"The notice required by subdivision (a) shall be in writing and shall be sent either by email to the email address prominently displayed on the manufacturer's website for this purpose or by certified or registered mail, return receipt requested, to the address provided by the manufacturer in the owner's manual or warranty booklet. The notice information on the manufacturer's website, owner's manual, and warranty booklet shall be provided in both English and Spanish." (Code Civ. Proc., § 871.24, subd. (d).)

"An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, *and shall not seek civil penalties*, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code." (Code Civ. Proc., § 871.24, subd. (h).)

Here, Defendant argues that Plaintiffs failed to allege that they provided timely written notice that complied with section 871.24(a) and were in possession of the vehicle on the date the notice was sent.

Plaintiffs argue that these specific allegations need not be alleged and that minor deviations in the notice does not disqualify consumers from seeking civil penalties. (Code Civ. Proc., § 871.24, subd. (b).) Plaintiffs argue that Defendant has written records of the notice and any argument that notice is insufficient is based on evidence and not the pleadings.

The court agrees with Defendant that Plaintiffs' allegations are insufficient to allege a claim for civil penalties. Plaintiffs failed to allege that Plaintiffs complied with section 871.24 before seeking civil penalties and/or that any purported notice was a "minor deviation." Without compliance with section 871.24(a) or 871.24(b), section 871.24 precludes Plaintiffs from obtaining civil penalties.

For this reason, the motion is GRANTED with 20 days leave to amend.

Defendant to give notice.

Case Management Conference

The Case Management Conference is continued to August 27, 2026, at 9:00 a.m. in this department.

		Plaintiff to give notice.
8	24/7 Family Homecare, Inc. v. Martinezgarcia	Defendants Ernesto Martinez Garcia and Miguel Martinez Cruz's Motion to Strike Punitive Damages from Plaintiffs' Complaint is DENIED. The Court notes that Plaintiff does not seek punitive or exemplary damages from Defendant Cruz. Thus, Cruz's Motion is denied. Garcia contends that allegations of intoxication, statutory violations, or conclusory labels, without supporting factual details, are insufficient to support Plaintiffs 24/7 Family Homecare, Inc., and Shear Perfection Pet Salon, Inc.'s punitive damage allegations. The Court rejects Garcia's contentions. "[T]he act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (<i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 892; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 158 [recognizing driving while intoxicated amounts to a conscious disregard of the safety of others, which is sufficient to support punitive damages]; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 160 ["by the time <i>Taylor</i> was decided, the majority rule in other jurisdictions considering the issue was to allow punitive damages in drunk driving case"].) While the defendant in <i>Taylor</i> was an alcoholic who had habitually driven while under the influence of alcohol, the Supreme Court held, "while a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, <i>we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases.</i>" (<i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 896, italics added.) The Supreme Court had "no difficulty concluding that [the pleadings] contain sufficient allegations upon which it may reasonably be concluded that defendant consciously disregarded the safety of others. <i>There is a very commonly understood risk which attends every motor vehicle driver who is intoxicated. [Citation.] One who wilfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents.</i>" (<i>Id.</i> at pp. 896-897, italics added; accord, <i>People v. Watson</i> (1981) 30 Cal.3d 290, 300-301.) This is precisely what Plaintiffs allege in paragraph 11 of their Complaint. "The allowance of punitive damages in such cases may well be appropriate because of another reason, namely, to deter similar future conduct, the 'incalculable cost' of which is well documented. [Citation.] Section 3294 expressly provides that punitive damages may be recovered 'for the sake of example.'" (<i>Taylor v. Superior Court of Los</i>

		<i>Angeles County</i> (1979) 24 Cal.3d 890, 897; accord, <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155-156; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155 [the imposition of punitive damages is a legitimate means for furthering the goal of deterring drunk driving].) In his Motion to Strike, Garcia cites to <i>Taylor</i>, as well as <i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, for the proposition that Plaintiffs must state facts that demonstrate a conscious disregard of the probable dangerous consequence of the defendant's conduct, rather than merely the allegation that the defendant was intoxicated. Garcia also argues that the allegation that he has been, or will be, convicted of a felony violation of the Vehicle Code is speculative, such that it does not constitute an ultimate fact that supplies the factual basis required to plead punitive damages. However, as the Supreme Court held in <i>Taylor</i>, <i>Peterson</i> and <i>Watson</i>, Garcia's operation of a motor vehicle while allegedly intoxicated, in and of itself, constitutes malice, particularly since his actions resulted in significant property damage. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155-156, 158; <i>People v. Watson</i> (1981) 30 Cal.3d 290, 300-301; <i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 892, 896-897.) Further, Plaintiffs allege in their Complaint that Garcia drove the subject vehicle "while not holding a valid driver's license," yet he was "so intoxicated that [he] reportedly caused collisions to occur with three (3) parked vehicles and reportedly told the investigating officer that [he was] unsure how many vehicles [he] hit." (Complaint, ¶ 10.) Taken together, these allegations state facts that demonstrate Garcia's conduct was in conscious disregard of the probable dangerous consequences of driving while intoxicated. In any event, and as discussed, the simple fact a defendant becomes intoxicated, and then chooses to drive in that state, is sufficient to support an award of punitive damages. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 163; see <i>Ramona Manor Convalescent Hosp. v. Care Enters.</i> (1986) 177 Cal.App.3d 1120, 1141-1142 [recognizing courts approve punitive recoveries against drunk drivers, even though a drunk driver does not know the specific identity of his victim].) Given the foregoing, the Court can treat Garcia's act of driving while under the influence as being malicious or oppressive, as he consciously disregarded the safety of others by driving while under the influence. (See <i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 896-897 [one who willfully consumes alcoholic beverages to the point of intoxication, and then operates a motor vehicle, "reasonably may be held to exhibit a conscious disregard of the safety of others," and "the effect may be lethal whether or not the driver had a prior history of drunk driving incidents"].) The Court also disagrees with Garcia's contention that Plaintiff has not alleged sufficient facts to support his punitive damage allegations. (See <i>Monge v. Superior Court</i> (1986) 176 Cal.App.3d 503, 510 [necessary facts can be stated as ultimate facts or conclusions of law, as long as
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		they are read in context with the other facts alleged as to defendant's conduct in order to "adequately plead the evil motive requisite to recover[] ... punitive damages".) Plaintiffs allege Garcia consumed alcohol to the point of intoxication. Garcia knew (1) he was intoxicated, (2) he had to operate a motor vehicle, which he allegedly did not have a valid license to operate, and (3) he was unfit to operate the motor vehicle, yet he did so anyway, resulting in him colliding with three parked vehicles. (Complaint, ¶¶ 9-11, 13.) The foregoing allegations of fact are sufficient to support Plaintiff's claim that Garcia's conduct was willful and wanton. (Complaint, ¶ 11.) Thus, the Court shall deny Defendants' Motion to Strike. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 27, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
9	Adjemian v. Gallo	Plaintiff Kevork Adjemian's motion for protective order is GRANTED. The court awards Plaintiff sanctions in the amount of \$<u>875</u>. (Code Civ. Proc. § 2033.080, subd. (d)). <u>Untimely Opposition</u> As a preliminary matter, Defendant Gallo's Opposition was due 6/11/26 pursuant to Code Civ. Proc. § 1005, subd. (b), but was not submitted until 6/16/26. The court disagrees with Defendant Gallo's assertion that this delay was "minimal", and, therefore, disregards the Opposition. <u>Authority</u> A protective order may be obtained if the relief is sought "promptly". (Code Civ. Proc. § 2033.080(a) [protective order for requests for admissions]). The burden is on the moving party to establish "good cause" for whatever order is sought. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255 (interrogatories); <i>Stadish v. Super. Ct.</i> (1999) 71 Cal.App.4th 1130, 1145 (document requests).) "Good cause" requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (<i>Goodman v. Citizens Life & Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819). <u>Merits</u> Plaintiff moves for an order excusing him from responding to Defendant's Gallo's third set of requests for admissions containing

		requests for admissions nos. 418-666. Plaintiff sets forth the following in support of his contention that good cause requires this order: This case is based on the sale of certain real property by Defendant Gallo to Plaintiff Adjemian. As is alleged in the complaint, Adjemian purchased the property and, after doing so and taking possession discovered water intrusion below the exterior decks of the home and into the interior living space. Adjemian learned that Gallo had replaced the decks without permits and without the necessary waterproofing. Adjemian contends that these facts should have been disclosed to him but were not. (Decl. of Quinn, ¶ 1). On December 30, 2025, Gallo propounded his third set of requests for admissions by email on Plaintiff. These requests took the total number of requests propounded to 666. (Decl. of Quinn, ¶ 2). Plaintiff has responded to over 400 requests for admissions to date. (Decl. of Quinn, ¶ 4). Counsel then declares that he discovered the requests were duplicative, as follows: "my review of the latest set led me to conclude that they were largely duplicative of what had previously been responded to. However, due to the volume of interrogatories, trying to analyze all 666 over three sets for duplication was nearly impossible and certainly would have been very time consuming. As such, I uploaded all three sets to ChatGPT and had it analyze for duplication. I then spot checked for accuracy. The results are reflected in my letter. I thus pointed out that the requests were duplicative of the 417 previously propounded and responded to. On this basis, 1 requested withdrawal of requests." (Decl. of Quinn, ¶ 4). The court agrees that 666 requests for admissions in this particular matter is grossly excessive. Defendant Gallo failed to timely oppose, and, therefore, failed to contend why this additional set was necessary. But even if the court were to consider his Opposition, Defendant Gallo did not set forth justification as to why these many requests are necessary. Rather, Defendant Gallo discussed the prior discovery disputes relating to earlier sets of discovery and Plaintiff's failure to completely respond. But if this were the case, the proper remedy would be to move to compel further responses to those prior requests (and Defendant has, in fact, done so on multiple occasions). Accordingly, the court GRANTS the motion. Plaintiff shall give notice.
10	Streling v. Miller	Plaintiff/Cross-Defendant Sheena Streling moves for summary adjudication on the Complaint. Plaintiff/Cross-Defendant Sheen Streling moves for summary judgment on the Cross-Complaint filed by Defendant/Cross-Complainant Daniel Paul Miller or in the alternative, summary adjudication on each crossclaim therein. For the following reasons, the motions are DENIED. <u>Improperly Combined Motions</u> Plaintiff moves for summary judgment or adjudication in two separate actions. "A complaint and a cross-complaint are, for most purposes, treated as independent actions. [Citation.] 'Procedurally, a cross-

		complaint is a separate pleading and represents a separate cause of action from that which may be stated in the complaint.’ [Citation]. Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]” (<i>Security Pacific National Bank v. Adamo</i> (1983) 142 Cal.App.3d 492, 496.) In moving for summary judgment/adjudication on both pleadings here, Plaintiff Streling improperly combines two independent motions. No later than five (5) court days from the hearing, Plaintiff SHALL pay the filing fee for the second motion. <u>Notice of Motion</u> California Rules of Court, Rule 3.1350 provides that: Except as provided in Code of Civil Procedure section 437c(r), and rule 3.1351, the motion for summary judgment or summary adjudication must contain and be supported by a notice of motion. The court has discretion to proceed to the merits despite the moving party’s failure to comply with Rule 3.1350. (<i>See Lin Joon Oh v. Teachers Insurance and Annuity Association of America</i> (2020) 53 Cal.App.5th 71, 82; <i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118.) Here, Moving Party filed no notice of motion, but the moving papers show Plaintiff’s intention to move for: (1) summary adjudication on the issue of duty and on Defendant’s first, third, fourth, sixth, seventh, eighth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth affirmative defenses; and (2) summary judgment on the Cross-Complaint or alternatively summary adjudication on each cause of action therein. The court finds Defendant waives any objection based on insufficient or defective notice. <u>Motion for Summary Judgment on Complaint</u> <u>Defendant’s Duty to Plaintiff</u> Plaintiff moves for summary adjudication on the issue of Defendant’s duty of care owed to Plaintiff. This is an improper issue for summary adjudication. “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c(f)(1).) The existence of any duty by Defendant Miller to Plaintiff Streling does not dispose of Plaintiff’s negligence claims but instead, establishes one element of the claims. <u>Plaintiff’s Contributory Fault</u> Plaintiff moves for summary adjudication on Defendant’s 1st, 3rd, 4th, 7th, 8th, 9th, 10th, 11th, 12th, 13th, 14th, and 15th affirmative
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		defenses. Plaintiff argues Defendant cannot establish some nonzero percentage of fault by Plaintiff because Plaintiff “had the right to assume that Defendant/Cross-Complainant would not suddenly veer into her path without warning, particularly after she rang her bell multiple times to announce her presence.” (See, e.g., Mot. at 7:28-8:2.) As an initial matter, the court disregards Plaintiff’s conclusory characterization that she was “lawfully” riding an electric bike on the bike trail. (See, e.g., Pltf.’s Sep. St. No. 1.) That purported fact is not supported by the cited evidence (see Pltf. Decl. ¶ 2) and in any case, a declaration to that effect would not qualify as competent evidence. (See, e.g., <i>Kim v. Westmoore Partners, Inc.</i> (2011) 201 Cal.App.4th 267, 280-281 [finding conclusory assertions about a declarant’s “anxiety, depression, and financial hardships” supported by no evidentiary facts about either his emotional or financial state to be insufficient to support setting aside default based on excusable neglect]; <i>United Parcel Service Wage & Hour Cases</i> (2010) 190 Cal.App.4th 1001, 1018 [finding a declaration consisting of only a recitation of legal conclusions and ultimate facts, without any evidentiary facts, was insufficient to establish a triable issue of fact to defeat summary judgment]; <i>Hayman v. Block</i> (1986) 176 Cal.App.3d 629, 640 [finding declarations containing “general and vague charges” do not qualify as “competent or credible evidence.”].) Plaintiff contends Defendant Miller violated multiple Vehicle Code provisions, including sections 22107 and 22108. (See Veh. Code, § 21200(a)(2) [providing that “[a] person operating a bicycle on a Class I bikeway . . . has all the rights and is subject to all the provisions applicable to the driver of a vehicle pursuant to Section 20001, except those provisions which by their very nature can have no application”].) Section 22107 provides: “No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety and then only after the giving of an appropriate signal in the manner provided in this chapter in the event any other vehicle may be affected by the movement.” Section 22108 provides more specifically that: “Any signal of intention to turn right or left shall be given continuously during the last 100 feet traveled by the vehicle before turning.” It is undisputed that Defendant did not signal prior to initiating a turn, Defendant did not look behind him before doing so, and Plaintiff rang her bell multiple times before attempting to pass on the left. (Pltf.’s Sep. St. Nos. 9, 18.) As the moving party, Plaintiff bears the burden to show that Defendant cannot establish an element of contributory negligence (e.g., duty, breach, causation, or damages). Plaintiff does not show that she owed no duty to Defendant (i.e., had the right of way while passing Defendant on the left), that ringing her bell prior to passing complied with her duty to Defendant, or that Defendant cannot otherwise prove causation. Having failed to show she breached no duty to Defendant, Plaintiff effectively argues that Defendant should be held strictly liable for his negligence and/or failure to comply with certain Vehicle Code sections. This falls short of meeting Plaintiff’s burden to show she was she was not contributorily negligent for the collision.
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		For these reasons, the court denies the motion for summary adjudication of the 1st, 3rd, 4th, 7th, 9th, 10th, 11th, 12th, 13th, 14th, and 15th affirmative defenses to the Complaint. <u>Assumption of the Risk</u> Plaintiff argues Defendant cannot establish the 6th and 8th affirmative defenses because the undisputed facts show Plaintiff was not injured by a risk inherent in the recreational activity of bike riding but instead, as a result of Defendant's recklessness. Primary assumption of the risk relieves defendant of any duty to plaintiff, where plaintiff is injured due to a risk that is inherent in plaintiff's job or in an activity in which plaintiff chose to participate. (<i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, 308.) Prior to 1992, California also recognized a complete defense of "secondary" or implied assumption of the risk, but that doctrine is now subsumed into comparative fault. (<i>Shin v. Ahn</i> (2007) 42 Cal.4th 482, 498-499.) The doctrine of primary assumption of risk arises "where, by virtue of the nature of the activity and the parties' relationship to the activity, the defendant owes no legal duty to protect the plaintiff from the particular risk of harm that caused the injury." (<i>Knight v. Jewett, supra</i>, 3 Cal.4th at pp. 314-315; see also <i>Amezcuca v. Los Angeles Harley-Davidson, Inc.</i> (2011) 200 Cal.App.4th 217, 228 [holding same].) Primary assumption of the risk is an objective test. It does not depend on a particular plaintiff's subjective knowledge or appreciation of the potential for risk. (<i>Whelihan v. Espinoza</i> (2003) 110 Cal.App.4th 1566, 1573; <i>Calhoon v. Lewis</i> (2000) 81 Cal.App.4th 108, 116.) "[T]he primary assumption of risk doctrine is not limited to activities classified as sports[] but applies as well to other recreational activities 'involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.' [Citation.]" (<i>Nalwa v. Cedar Fair, L.P.</i> (2012) 55 Cal.4th 1148, 1156; see also, e.g., <i>Beninati v. Black Rock City, LLC</i> (2009) 175 Cal.App.4th 650, 658 [holding primary assumption of the risk doctrine applied to preclude claims of a plaintiff who suffered burns when he tripped and fell into a fire at the annual Burning Man festival].) "The doctrine applies to activities or sports where 'conditions or conduct that otherwise might be viewed as dangerous often are an integral part of the sport itself.' [Citation.]" (<i>Saville v. Sierra College</i> (2005) 133 Cal.App.4th 857, 866, as modified (Oct. 31, 2005), as modified on denial of reh'g (Nov. 28, 2005), citing <i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, 315.) "Courts employ an objective test of whether the activity "is done for enjoyment or thrill, requires physical exertion as well as elements of skill, and involves a challenge containing a potential risk of injury." (<i>Moser v. Ratino</i> (2003) 105 Cal.App.4th 1211, 1221 [internal quotations omitted]; see also <i>Calhoon v. Lewis</i> (2000) 81 Cal.App.4th 108, 116 [holding "[t]he assumption of risk doctrine is an objective test"].) "Judges applying the primary assumption of risk doctrine in cases regarding a recreational context may consider their own 'common experience with the recreational activity involved' and 'may also consult case law, other published materials, and documentary evidence
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		introduced by the parties on a motion for summary judgment.” (<i>Wellsfry v. Ocean Colony Partners, LLC</i> (2023) 90 Cal.App.5th 1075, 1084, citing <i>Nalwa v. Cedar Fair, supra</i>, 55 Cal.4th at p. 1158.) Falls and road obstacles may be inherent risks in cycling long distances. (See <i>Williams v. County of Sonoma</i> (2020) 55 Cal.App.5th 125, 134 [discussing risks inherent in cycling and concluding a “pothole so large as to ‘pose a hazard to . . . [a]nything on the roadway’ . . . is not an inherent risk of long-distance, recreational cycling”].) A defendant’s duty regarding the inherent risk depends on the role that defendant played. (See <i>Saville v. Sierra College, supra</i>, 133 Cal.App.4th at pp. 870-871.) “Where the doctrine applies to a recreational activity, operators, instructors and participants in the activity owe other participants only the duty not to act so as to increase the risk of injury over that inherent in the activity.” (<i>Nalwa v. Cedar Fair, supra</i>, 55 Cal.4th at p. 1154, italics omitted.) Coparticipants must not intentionally or recklessly injure other participants (<i>Griffin v. The Haunted Hotel, Inc.</i> (2015) 242 Cal.App.4th 490, 499–500 (<i>Griffin</i>)), but the doctrine is a complete defense to a claim of negligence (<i>Foltz v. Johnson</i> (2017) 16 Cal.App.5th 647, 655). However, recovery for injuries caused by risks <i>not</i> inherent in the activity is not barred by the doctrine. (<i>Swigart v. Bruno</i> (2017) 13 Cal.App.5th 529, 538 (<i>Swigart</i>).)” (<i>Wolf v. Weber</i> (2020) 52 Cal.App.5th 406, 410–411, italics in original.) Here, there are disputed facts as to whether Defendant provided any signal of his intention to turn. Defendant submits evidence he slowed down when approaching the intersection of the pedestrian trail, which a reasonably jury may find would indicate his intention to turn. (Def.’s Sep. St. No. 16 [citing Brislin Decl., Ex. A [Miller Depo.] at 23:20-21, 24:13-21].) <u>Motion for Summary Judgment or Summary Adjudication on Cross-Complaint</u> Plaintiff argues Defendant cannot establish some nonzero percentage of fault by Plaintiff because Plaintiff “had the right to assume that Defendant/Cross-Complainant would not suddenly veer into her path without warning, particularly after she rang her bell multiple times to announce her presence.” Plaintiff argues that as a result, Defendant/Cross-Complainant’s 1st, 2nd, 3rd, and 4th causes of action fail as a matter of law. The cross-claims allege that Plaintiff is responsible in causing and bringing about the alleged injuries to minor Plaintiff Anderson Loera. (Cross-Compl. ¶¶ 5, 9, 14, 23.) Specifically, the Cross-Complaint alleges Plaintiff breached her duty to exercise reasonable care in attempting to pass Defendant while knowing Defendant did not hear her ringing to pass and putting her own child in peril thereby. (Cross-Compl. ¶ 6.) As discussed above, Plaintiff/Cross-Complainant does not meet her initial burden of showing Defendant/Cross-Complainant cannot establish some nonzero percentage of fault by Plaintiff. <u>Evidentiary Objection</u>
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		Plaintiff's objection to Defendant's Ex. A at 23:20-21 and 24:13-21 is OVERRULED. <u>New Evidence on Reply</u> While new evidence is generally not permitted on reply, the court may consider new evidence that responds to a new issue raised on opposition. (<i>See, e.g., Carbajal v. CWPSC, Inc.</i> (4-3, 2016) 245 Cal.App.4th 227, 241.) The court considered the supplemental deposition testimony submitted by Plaintiff on reply, which provides context for the deposition testimony cited by Defendant on opposition. (See Ellis Reply Decl. [ROA # 57], Ex. A.) <u>Request for Judicial Notice</u> Plaintiff's request for judicial notice on reply (ROA # 59) is DENIED as unnecessary. A court may deny a request for judicial notice, where the material referenced is not "necessary, helpful, or relevant." (<i>See Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6].) <u>Continuance</u> Defendant/Cross-Complainant's requests a continuance to complete discovery is DENIED as unnecessary. Defendant to give notice.
11	Bubonic v. Park Newport LP	Plaintiff Mary Ann Denise Bubonic's motion to quash subpoenas issued to Hoag Hospital – Newport Beach, Hoag Hospital -Newport Beach (billing department), UCI Medical Center, UCI Medical Center (billing department), and Physical Therapy and Newport Hand Center is DENIED, subject to the protective order as discussed below. 1. <u>Objections</u> The court OVERRULES Plaintiff's objection to Page 2, lines 9-11 of the declaration of Mr. Rodriguez. The court SUSTAINS Plaintiff's hearsay and best evidence objections as to the remaining paragraphs. 2. <u>Legal Authority for Motion</u> Code Civ. Proc. § 1987.1(a) states: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In

		addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” A separate statement is required for motions to quash the production of documents in response to a subpoena, pursuant to Cal. Rules of Court, rule 3.1345(a)(5). Plaintiff failed to comply with the separate statement requirement. However, Defendants do not object. 3. <u>Subpoena requests</u> Defendants issued subpoenas to Hoag Hospital’s Medical Records Department and UCI Medical Center’s Medical Records Department for the production of the following: Any and all medical records, files, reports, correspondence, whatsoever, relating to any care, treatment, diagnosis, prognosis, consultation and/or findings, including but not be limited to, any and all emergency room records, nurses notes, SOAP notes, operative reports, radiology reports, pathology reports, all test and test results, medication records, physical and/or occupational therapy records, fall-risk testing records, workers' compensation records, sign-in sheets, color photographs, patient information sheets, handwritten notes, transcriptions, prescriptions, telephone messages, electronic media and any documents in the file from other health care providers, from June 5, 2023 to the present date pertaining to Mary Ann Denise Bubonic.... Documents should also include, but not be limited to, any data stored electronically regarding the time period listed above. (Decl. of Teppara, Ex. A at pp. 6 and 18.) Defendants issued subpoenas to Hoag Hospital’s Billing Department and UCI Medical Center’s Billing Department for the following: Any and all billing records, including but not limited to itemized breakdown of charges, records of payments and/or discounts with proof of amounts paid, contractual adjustments, write-offs, liens and balance due, billing information with procedure and diagnosis codes (including any CPT codes), statements, computer print-outs, fees for professional services and correspondence from Medicare, Medicaid, Medi-Cal, the claims' records, from June 5, 2023 to the present pertaining to Mary Ann Denise Bubonic Documents should also include, but not be limited to, any data stored electronically regarding the time period listed above. (Decl. of Teppara, Ex. A at pp. 12 and 24.) Finally, Defendants issued a subpoena to Physical Therapy and Newport Hand Center for the following: Any and all medical records, files, reports, correspondence, insurance records, itemized billing records and payment records
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		(proof of amounts paid) whatsoever, relating to any care, treatment, diagnosis, prognosis, consultation and/or findings. Documents should also include, but not be limited to, any and all emergency room records, nurses notes, SOAP notes, operative reports, radiology reports, pathology reports, all test and test results, medication records, physical and/or occupational therapy records, workers' compensation records, sign-in sheets, color photographs, patient information sheets, handwritten notes, transcriptions, prescriptions, insurance/payment files, telephone messages, electronic media and any documents in the file from other health care providers from June 5, 2023 to the present date pertaining to Mary Ann Denise Bubonic... (Teppara Decl., Ex. A at p. 30.) Plaintiff objects on the basis of privacy. There is an inherent right of privacy in medical records. The constitutional right to privacy, however, is not absolute. (<i>Hooser v. Superior Court</i> (2000) 84 Cal.App.4th 997, 1004). The California Supreme Court has held that plaintiffs "may not withhold information which relates to any physical or mental condition which they have put in issue" (<i>Britt v. Superior Court</i> (1978) 20 Cal.3d 844, 864.) "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. ...The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy." (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552.) "A court must then balance these competing considerations." (<i>Id.</i>). "The burden is on the party seeking the constitutionally protected information to establish direct relevance." (<i>Davis v. Superior Ct.</i> (1992) 7 Cal.App.4th 1008, 1017.) The fact that information "might" be relevant or that a party speculates that the records could be material is insufficient. (<i>See Davis, supra</i>, 7 Cal.App.4th at 1017-1018 ["Real party has not countered with any showing of direct relevance; rather, real party only speculates that in the records requested there could be material which might be relevant to various issues in the action, such as the nature and extent of emotional distress suffered, causation of the accident and petitioner's condition at the time of the accident. Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice. [Citations omitted.] We are mindful of the scope of the materials requested. Real party seeks any and all medical or hospital records relating to the care and treatment of petitioner to date; real party has made no attempt to limit the request to specific matters directly relevant to petitioner's pain and suffering from the physical injuries. Petitioner has established that the records do not concern treatment for the injuries for which she claims damages. The request is thus overbroad because it necessarily encompasses privileged material which is not relevant to the lawsuit."].)
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		See also <i>Britt v. Superior Court</i> (1978) 20 Cal.3d 844, 864: “[P]laintiffs are ‘not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury’; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (internal citations omitted). Plaintiff has established that she has a right to privacy to her medical records, has a reasonable expectation of privacy for her medical records, and that the subpoenas intrude on this information. Accordingly, Defendants must raise in response whatever legitimate and important countervailing interests disclosure serves. Defendants contend that these records are directly relevant and essential to the fair resolution of the action, pursuant to <i>Britt, supra</i>. First, Defendants note that the subpoenas only seek records starting on the date of the incident - June 5, 2023 to the present-and do not seek any pre-incident records. Next, Defendants argue that the records are also directly relevant to how and why Plaintiff fell, as the fall occurred at night, and the mechanics of her fall remain unknown. Defendants also contend that in Plaintiff’s own complaint, she alleges that the fall injured her “health, strength, and activity, causing severe shock to her body,” that her injuries “have caused and continue to cause [her] great mental and physical pain and suffering,” that she continues to incur medical expenses, and that she has suffered a loss of income and earning capacity. (Compl. ¶¶ 23–25, 33–35.) Therefore, her own alleged damages pertain to body parts and functions that go beyond her wrist and head. Finally, in support of Plaintiff’s Reply, Plaintiff attached copies of her form interrogatory responses wherein she confirms that Hoag Hospital – Newport Beach, UCI Medical Center and Corona Del Mar Physical Therapy and Newport Hand Center provided a consultation, examination and/or treatment. (See Ex. A to Decl. of Teppara ISO Reply). Her form interrogatory response also confirms that she had the following disability immediately before the incident: “Degenerative disc disease; in process of recovering from hip fracture.” (See Ex. A to Decl. of Teppara ISO Reply). And while Plaintiff stated in her form interrogatories that she attributes “Broken left wrist; head laceration” to the incident, she also states that “Responding Party reserves the right to supplement and/or amend this response, and to disclose further information and/or documents supportive of Responding Party’s contentions herein, and in so doing, intend to rely on any and all additional information obtained, up to and including the time of trial.. .” (See Ex. A to Decl. of Teppara ISO Reply). The court finds that the records requested are relevant to establishing causation and damages, particularly in this instance where Plaintiff admits that she had degenerative disc disease and was in process of recovering from a hip fracture immediately before the incident.
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12	Corona Del Mar Properties, Inc. v. Lui	Off calendar.
13	Vytautas John Jusionis As Trustee Of The Vytautas Jusionis & Bok Sil Ji Trust v. Foster	Denied. Plaintiff to give notice.